

**IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION**

WRIT PETITION NO.3601 OF 2025

Paramount Healthcare Management
Private Limited

... Petitioner

Versus

The Commissioners of GST And
Central Excise (Appeals-II) And Ors.

... Respondents

.....

Mr. Keval Shah a/w Mr. Rohit Pahilwan for the Petitioner.

Mr. Ram Ochani a/w Ms. Sangeeta Yadav for the Respondents.

.....

**CORAM: M.S. KARNIK &
SANDESH D. PATIL, JJ.**

DATED : 16th SEPTEMBER 2026

PC.

1. Heard the learned Counsel for the Petitioners.
2. The order in original as well as the Order in Appeal, are under challenge. Mr. Ram Ochani, the learned Counsel for the Respondents, opposes the Petition, contending that the original order as well as the Order in Appeal, are reasoned Orders and therefore, no interference is warranted.
3. The contention of the Petitioner is that the Order in original

has travelled beyond what the show cause notice provided for. It is submitted that the demand as made by the Department in the show cause notice in fact has been satisfied by the Petitioner. It is obvious that if the Order in original is beyond what was contemplated under the show cause, the same cannot be sustained. Though, Mr. Ochani made an attempt to submit that Appellate Authority as well as the Adjudicating Authority have given adequate reasons, as to why the demand is justified, we find that so far as the excess demand beyond the show cause notice is concerned, the said aspect needs to be considered appropriately afresh by the Adjudicating Authority. Accordingly, the impugned Orders are quashed and set aside and the matter is remanded to the Adjudicating Authority for a fresh consideration on merits, after taking into consideration the submission of the Petitioner that the demand as made in the show cause notice is satisfied. The learned Counsel for the Petitioner submits that the Petitioner has complied with what was provided in the show cause notice in view of the Orders passed by this Court.

4. The Petitioner shall appear before the adjudicating authority on 29th September, 2026 when further schedule of hearing be fixed. The

contentions of the Petitioner as well as the Respondents are kept open and the Petitioners shall not raise any objection about the delay in adjudication of the show cause notice in view of the passage of time, in view of the pendency of the proceedings.

5. The Petition stands disposed of.

(SANDESH D. PATIL, J.)

(M.S. KARNIK, J.)